

NOTICE OF DISPUTE — STAGE 2

Clause 1.11.2(b), Queensland Public Health Sector Certified Agreement (No. 12) 2025

To	Ms Jacqui Roberts, Principal Consultant, Human Resources, Logan and Beaudesert Health Service — as the appropriate management representative under clause 1.11.2(b)
Copied to	Ms Chloe Taylor, Switchboard Manager · Metro South Payroll · Ms Emily Petering, Together Queensland
Employee	Cory Shepherd, employee number 388372 — AO3, Switchboard Services, Logan Hospital. Permanent full-time, 76 hours per fortnight. Together Queensland member and endorsed workplace delegate.
Date	3 September 2026
Matter	Attendance, roster, leave and pay from 26 June 2026 (MSH-INJ-5795)

1. THE REFERRAL

I refer this dispute to Stage 2 under clause 1.11.2(b) of the Agreement, and ask that a conference of the parties be arranged. I ask that Together Queensland attend with me.

A Stage 1 notice was given on 3 August 2026. On 4 August 2026 Ms Taylor acknowledged that the 24-hour requirement in clause 1.11.2(a) "will not be achieved", confirmed the dispute was under review, and undertook that I would be contacted on completion of the review. The seven days allowed by clause 1.11.2(a) expired on 10 August 2026. No outcome of Stage 1 has ever been communicated to me.

I earlier referred the matter to Stage 2 and withdrew that referral on 28 August 2026, in order to work through the issues directly with you. In doing so I withdrew the referral only, and recorded that my concerns regarding pay, the leave debited since 3 July 2026 and the adjustments in the Employee Capability Checklist of 3 July 2026 remained unresolved and in dispute. They remain unresolved, and the position has worsened since.

2. THE MATTERS IN DISPUTE

- 1. Pay.** I have received no wages since 13 July 2026 — fifty-two days and four pay days at nil. I have been ready, willing and available throughout, and certified fit with restrictions on the Health Service's own form since 3 July 2026.
- 2. The direction not to attend.** I have been held out of the workplace since 3 July 2026. I asked in the Stage 1 process on 4 August 2026 for the instrument authorising that direction, and have asked repeatedly since. It has never been identified, and no written decision returning me to work or declining to has ever been issued.
- 3. The leave coding.** "Sick Leave – No Pay" has been applied to my record daily since 3 July 2026, against my written instruction of that date. Section 6 of HR Policy C13 permits leave to be submitted on an employee's behalf only where the employee's written request is held and the supporting documents retained. My written requests are for annual leave (3 July 2026) and special leave on full pay (5 August 2026).
- 4. Special leave.** My application for special leave on full pay under Directive 12/24, made on 28 July and 5 August 2026, has been neither granted nor refused.
- 5. Hours.** Leave was applied on 31 August 2026 at "0.5 FTE". The last reduced-hours arrangement expired on 28 June 2026 and nothing replaced it. The Health Service's own Request for Medical Information of 31 July 2026 describes my employment as "Permanent Full-time (76 hours per fortnight)".
- 6. Long service leave.** Payroll advised on 3 September 2026 that eligibility arises "only from 04/09/2026". On the service dates recorded in the agreement under which I was reinstated in February 2025, seven years' continuous service fell due on 25 March 2026. Unpaid periods are excluded from continuous service, and the coding in dispute is the largest of them.
- 7. Consultation and risk.** The workplace psychosocial risk assessment sought under clause 7.2 on 28 July 2026 has not been conducted, and the task-by-task match of the role description against the Employee Capability Checklist, sought the same day, has not been produced.

3. THE AGREEMENT'S REQUIREMENTS

Clause 1.11.4 provides that "the status quo existing before the emergence of a dispute is to continue whilst the procedure is being followed". The status quo before 3 August 2026 was that I was employed, at 76 hours per

fortnight, and paid. That has not been maintained: since the dispute was notified, my absence has been coded to a leave type that pays nothing, leave has been applied at half my hours, and my long service leave eligibility has been deferred.

Clause 1.11.5 provides that "no party shall act in a manner unreasonably or intentionally delay the timely resolution of a dispute".

Clause 1.11.2(b) provides that the Stage 2 process "should not extend beyond seven days". I ask that the conference be arranged and held on or before **Wednesday 10 September 2026**.

4. WHAT I SEEK

1. Payment of the wages withheld since 13 July 2026; alternatively, the leave I have applied for entered without debit to my accrued credits, and the ad hoc payment pending under enquiry 4471091 processed against it.
2. Correction of the leave coding from the first date it was applied, and before long service leave eligibility is recalculated in the leave audit opened on 3 September 2026.
3. A determination of my application for special leave on full pay, in writing, with reasons addressing the considerations in clause 6.5 of Directive 12/24.
4. Leave and pay applied at 76 hours per fortnight, or the instrument relied on for any lesser figure.
5. A written decision either returning me to work within the restrictions recorded on 3 July 2026 by a stated date, or declining to, identifying the instrument relied on and the officer who decided it.
6. A copy of the written request and supporting documents on which each "Sick Leave – No Pay" entry since 3 July 2026 was made, as required by section 6 of HR Policy C13.
7. The workplace psychosocial risk assessment sought on 28 July 2026.

5. IF THE DISPUTE REMAINS UNRESOLVED

If the dispute is not resolved at Stage 2, I reserve my position under clause 1.11.2(c) to refer the matter to the EB12 Implementation Group, and under clause 1.11.2(d) to refer it to the Queensland Industrial Relations Commission.

Everything I have applied for remains on the basis set out at paragraph 4 of my application of 31 August 2026 — under protest and subject to re-credit. I remain certified fit with restrictions and available to work.

This notice concerns my employment only. My appeal in the Queensland Industrial Relations Commission is a separate proceeding and nothing in this notice forms part of it.

Attached: "The employment record — analysis, complete chronology and original documents", 288 pages: the chronology of every communication event from February to 3 September 2026, and the original documents behind it.

Cory Shepherd

Employee number 388372 · 0417 400 227 · coryshepherd1@hotmail.com